sanas South African National Accreditation System

NON-CONFORMANCE, CORRECTIVE ACTION AND CLEARANCE REPORT

SANAS No.: **T1195**

Organisation Name: **Azuresky Laboratory**

NC Report Number: **AB02**

Area/Scope Assessed: **Management Requirements**

Assessor / Inspector / Expert: **A. Bougart**

PART 1: DETAILED OBSERVATION

At the time of the assessment it was observed that the Declaration of interest form ASFM 4.2.1 and Nondisclosure form ASFM 4.3.1 was not completed by the Director of the CAB.

Signed (Representative):

Signed (Team Leader / Inspector): A. Bougart

MAJOR: [X] MINOR: [ ]

Reference No. of relevant Guide / Standard / Requirement: **ISO/IEC 17025 requirement 4.1.2**

Date: **08/04/2026**

PART 2: ROOT CAUSE ANALYSIS

(Provide an analysis of the extent and cause of the nonconformity)

- Misinterpretation of the clause scope.
- Inadequate onboarding process for top management.
-

PART 3: CORRECTIVE ACTION TAKEN

(Clearly indicate what corrective action was taken, and attach supportig evidence of implementation)

- Director signed ASMF 4.2.1 and 4.3.1; NDA and declaration of interest; respectively.
- Impartiality risk review.
-

Date: 17/04/2026

Signed (Representative):

PART 4: CORRECTIVE ACTION VERIFIED AND CLEARED

(Comment on whether the corrective action is sufficient and appropriate)

Date:

Signed: Assessor / Inspector/Expert:

PART 5: FOLLOW-UP AT NEXT ASSESSMENT

(Comment on the implementation of the corrective actions)

Date:

Signed: Assessor / Inspector/Expert:

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AS004MF 07/25

BRAINSTORMING FORM

IRQ no: AB02

Brainstorming team

Sifiso Nyambi
Nonkanhla Msibi
Thepo Mapongwa

What went wrong? Deldaration of interest (ASMF 4.2.1) & NDA form (ASMF 4.3.1) was not signed by the CAB director.

Why 1. Why were the NDA and dellaration of interest forms not signed by the director? Misinterpretation of the ISO 17025 clause 4.1.2.

Why 2: Inadequate onboarding processes for top management.

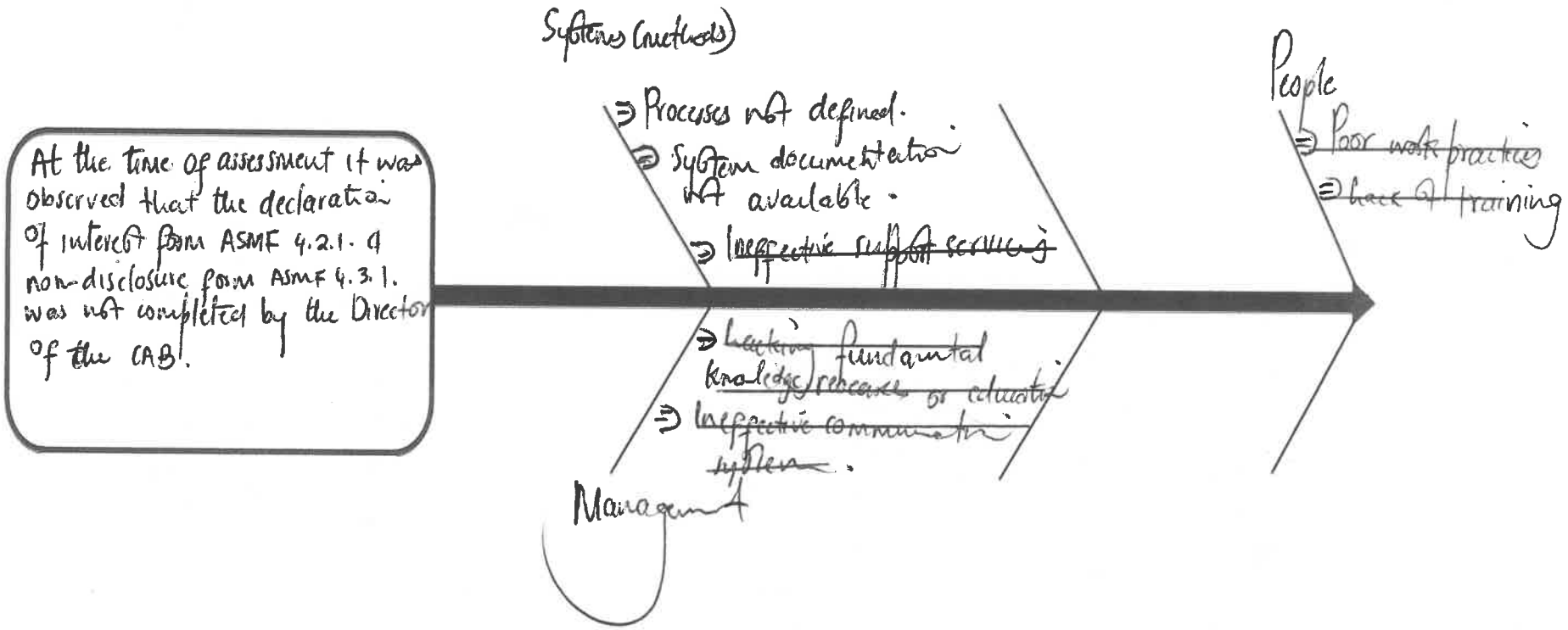
Supervisor:

AS001MF

07/25

ROOT CAUSE ANALYSIS FORM

IRQ NO: AB02



.....

SUPERVISOR

AS009MF 04/26

Additional Space for NC's

IRQ no: AB02

Root cause:

① Misintepration of the clause scope: There was a fundamental misunderstanding of the scope of ISO 17025 requirement 4.1.2. It was incorrectly assumed that the owner of the CAB, the directors inherent vested interest in the company's success superseded the need for a formal declaration of impartiality & confidentiality.

② Inadequate onboarding process for top management: The laboratory's "personnel requirement" was primarily focused on technical staff and laboratory-based personnel, failing to explicitly trigger the requirement for top-level management or directors to sign the specific management system forms.

Corrective action:

① Director of the CAB has formally reviewed, completed, and signed NDA (AS MF 6.21) and declaration of interest (AS MF 4.31).

② Impartiality risk review: Held a special management meeting to review the laboratory's risk register (doc). The director's role was specifically ~~found~~ analysed to identify potential pressures (commercial, financial, or other) that could compromise laboratory integrity, and these risks are now formally documented & mitigated.

Supervisor:

Before

AzurESky	**SELECTION AND RECRUITMENT OF TECHNICAL PERSONNEL**		
	Document no: ASMF 6.1 TS		
	Compiled by:	**Tshepo Maponya - Laboratory Supervisor**	
	Approved by:	**Nonhlanhla Msibi - Operations Manager**	

1. Purpose

To ensure that all personnel influencing laboratory activities are selected based on defined competence requirements, including education, technical knowledge, and skills, in compliance with ISO/IEC 17025:2017 Clause 6.2.

2. Scope

This procedure applies to the selection of all technical personnel, technical signatories, internal auditors, and nominated representatives at AzureSky.

3. Selection Criteria (Minimum Requirements)

The laboratory shall not recruit personnel who do not meet the following baseline criteria:

Role	Minimum Education	Experience Required
Lab Manager/Supervisor / Technical Signatory	Degree/Diploma in Chemistry	- 3+ years in Coal/Mineral Laboratory - Previous technical signatory appointment highly advantageous.
Analyst	Grade 12 (Math/Science) or Diploma in Chemistry	0-1 year (1 year of practical laboratory experience advantageous)
Internal Auditor	Previous technical signatory appointment for ISO/IEC 17025	Participation in at least 2 audit cycles for accreditation
Technical Assistant (Operators)	Grade 12	Basic literacy and numeracy

AFTER

AzurESky "ensure quality of test"	**SELECTION AND RECRUITMENT OF TECHNICAL PERSONNEL**	
	Document no: ASMF 6.1 TS	
Compiled by:	**Tshepo Maponya - Laboratory Supervisor**	
Approved by:	**Nonhlanhla Msibi - Operations Manager**	

Role	Minimum Education	Experience Required
Operations Manager	Advanced Diploma in Chemistry	+5 Years in a similar or higher role in a coal laboratory Previous technical signatory is highly advantageous

4. The Selection Process

4.1 Position Definition

Before recruitment begins, the Director reviews the Job Description (JD) for the vacant post. The JD must explicitly list the technical skills required for the said role.

4.2 Recruitment & Interviewing

- **Internal Database/HR/Director:** Candidates are sourced via internal database, headhunting based on previous experience or external providers.
- **Technical Interview:** Candidates are interviewed by the Director and or Lab Manager/Supervisor/Technical Signatory. The interview must include a "Technical Competency Check".

Management assesses the turnaround time to see if the workload can be a factor, so that more personnel can be recruited to mitigate the rising workload pressure amongst personnel.

4.3 Practical Evaluation (Pre-Appointment)

Where possible, candidates for technical roles should undergo a practical assessment (e.g., weighing a sample, performing Calorific Value) to demonstrate basic manual dexterity and understanding of laboratory safety. Hiring experienced personnel in high roles constitutes them only going over how the organization has been setup as a

AFTER

AzurESky "ensure quality at last"	**SELECTION AND RECRUITMENT OF TECHNICAL PERSONNEL**	
	Document no: ASMF 6.1 TS	
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Approved by:	**Nonhlanhla Msibi - Operations Manager**	

- Be conversant with all methods listed in the organization's scope of work/accreditation.
- Successful completion of the theoretical assessment for technical signatories & test methods (Onboarding Lab Supervisors/Managers with prior technical signatory appointment in an accredited laboratory do not need test method witnessing, only the theoretical assessments and running of a PT sample for competency evaluation should suffice.) Technical signatories that have been internally appointed must have initially been declared competent on all test methods and have been given training on the other requirements listed.
- Be able to identify, assess, investigate, and address non-conformances that may arise whilst performing duties, as well as lead, conduct/participate in external/external audits and to open, investigate, and address non-conformances identified during audits
- Have overall responsibility to check, evaluate and clear non-conformances that are raised by personnel under your line of reporting even those that have been cleared by the said personnel.
- Formally accept the responsibilities of being a technical signatory.

Revision

Rev no	Contents Changed	Reason for change	Date
01	No change, addition of operations manager.	Criteria for the position were omitted in the initial revision.	20/04/2026

Effective date	Rev status	Next review date
04/2026	01	04/2029

Directors influence to impartiality (review)

Risk Assessment

2. Causes (of the risk)	
1	Economic pressure, business cashflow issues. Or a management focus profitability over technical infrastructure.
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1. Risk
Resource related constraints

3. Consequences (of the risk)		
1	Compromised technical validity (e.g., missed calibrations, lack of PT participation) which could lead to potential suspension of SANAS accreditation.	
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3		
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10		

4. Existing Controls for the Causes (affecting the likelihood of the risk)		Eff	Control Owner
	Pre-approved budget specifically for calibrations and quality controls ring-fenced from operational expenses.	P	Managing Director

5. Likelihood		Matrix	Control Owner
	- > 20% probability, or - may occur shortly but a distinct probability it won't, or - could occur within "months to years"	5C	Laboratory Manager or Supervisor

	NON-DISCLOSURE AGREEMENT AND CONFIDENTIALITY CONTRACT		
AzurESky "ensure quality of test"	Document no: ASMF4.3.1 D		
	Compiled by:	Sifiso Nyambi - Laboratory Manager	
	Approved by:	Nonhlanhla Msibi - Operations Manager	

1 PARTIES

1.1 This contract is entered into between:

1.1.1 Azuresky Pty Ltd Reg. No. 2024/223777/07 ("Organisation"), and

1.1.2 ___NP Msibi _____(the "Director"), Director number

01, Director as at the date of signature of this contract,

2 DEFINITIONS

2.1 In this contract the following terms have the following meanings:

2.1.1 "**Confidential Information**" includes:

2.1.1.1. technical, commercial or financial information,

2.1.1.2. know-how, trade secrets or other intellectual property,

2.1.1.3. processes, machinery, designs, drawings, technical specifications and data,

relating to the Testing, Proficiency Testing Scheme and Reference Material Production, in whatever form and interpreted in the widest possible sense, and which information is contained in any documentation relating to the Testing, Proficiency Testing Scheme and Reference Material Production, whether such information is formally designated as confidential or not, and excludes Confidential Information that is;

Initial: NP

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AzurESky "ensure quality of test"	NON-DISCLOSURE AGREEMENT AND CONFIDENTIALITY CONTRACT		
	Document no: ASMF4.3.1 D		
	Compiled by:	Sifiso Nyambi - Laboratory Manager	
	Approved by:	Nonhlanhla Msibi - Operations Manager	

2.1.1.4. known to, or in the possession of the Director, prior to disclosure through the Project, in circumstances that do not amount to a breach of the provisions of this contract,

2.1.1.5. or becomes publicly known, otherwise than as a result of a breach of this contract by the Director,

2.1.1.6. developed independently of the Testing, Proficiency Testing Scheme and Reference Material Production by the Director in circumstances that do not amount to a breach of the provisions of this contract,

2.1.1.7. disclosed by the Director to satisfy a valid order of court or to comply with the provisions of any law or regulation in force from time to time. In these circumstances, the Director can take whatever steps it deems necessary. The Director can disclose only that portion of the Confidential Information which it is legally required to disclose.

2.1.1.8. received from a third party in circumstances that do not result from or in a breach of the provisions of this contract.

2.1.2 "**Project**" means the evaluation, negotiation and any other consideration of all procurement documentation generated, and the tenders submitted in response to tender name and number for the provision of services provided by Azuresky Pty Ltd.

Initial: NP

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	Compiled by:	Sifiso Nyambi - Laboratory Manager	
	Approved by:	Nonhlanhla Msibi - Operations Manager	

3 PROTECTIONS OF AND RESTRAINT ON USE OF CONFIDENTIAL INFORMATION

3.1 During the Project, the Director will become aware of and have access to Confidential Information.

3.2 The Director must not disclose to any other person, or make use of for his or her benefit or that of any other person, whether directly or indirectly, any Confidential Information related to the Project, without the prior written consent of Azuresky, save where such a person is also a participant in the Project and has signed a non-disclosure contract similar in all material respects to this contract.

3.3 The Director must protect Confidential Information related to the Project and handle and store such information so as to prevent any unauthorised disclosure.

3.4 The Director cannot keep Confidential Information and whenever required to do so, and in any event when leaving Azuresky's directorship, must return all Confidential Information relating to the Project.

CONTROLLED DOC

Initial: NP

AzurESky "ensure quality of test"	NON-DISCLOSURE AGREEMENT AND CONFIDENTIALITY CONTRACT		
	Document no: ASMF4.3.1 D		
	Compiled by:	Sifiso Nyambi - Laboratory Manager	
	Approved by:	Nonhlanhla Msibi - Operations Manager	

4 DURATIONS

This contract comes into effect on the date that the Director first has access to Confidential Information related to the Project and Testing, Proficiency Testing Scheme and

Reference Material Production will remain in force for a period as stated on tender documents to which the Project pertained, and for the processes of Azuresky business irrespective of whether the Director is or is not Director of Azuresky during this period.

5 GENERALS

5.1 This contract contains the entire agreement between the parties with regard to the subject matter hereof.

5.2 A waiver, amendment or early cancellation of this a contract will only be effective if reduced to writing and signed by or on behalf of the parties.

5.3 In the event that the Director breaches this contract and fails to remedy such breach within seven days from the date of a written notice to do so, or where such breach cannot be remedied, Azuresky may invoke all remedies available to it in law.

5.4 This contract replaces any similar contract previously signed by the Director in respect of the Project.

5.5 The Director must not make or issue any announcement or statement to the press or any other party in connection with the Project, and or Azuresky processes of production. External services of an attorney shall be in place to address the matter

Initial: NP

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AzurESky "ensure quality of test"	NON-DISCLOSURE AGREEMENT AND CONFIDENTIALITY CONTRACT		
	Document no: ASMF4.3.1 D		
	Compiled by:	Sifiso Nyambi - Laboratory Manager	
	Approved by:	Nonhlanhla Msibi - Operations Manager	

Signed at Wadeville on 20.04.2026.

Director [signature]

Commissioner of Oaths:

Signed at BEDFORDVIEW SAPS on 2026-04-20

HALALETSANG MAOITSI [Full name and surname]

[Signature]

SOUTH AFRICAN POLICE SERVICE
COMMUNITY SERVICE CENTRE/C SHIFT
2026 -04- 20
BEDFORDVIEW
SOUTH AFRICAN POLICE SERVICE

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Effective date	Rev status	Next review date
04/2026	00	04/2029

	CONFLICT OF INTEREST DECLARATION	
AzurESky "ensure quality of test"	Document no: ASMF4.2.1 D	
Compiled by:	Sifiso Nyambi - Laboratory Manager	
Approved by:	Nonhlanhla Msibi - Operations Manager	

In support of the ethical values of transparency, objectivity, fairness and accountability that are inherent in the Companies Act 71 of 2008, the Public Finance Management Act 1 of 1999, Code of Ethics Policy, Code of Ethics Procedure

- All employees and Director are required to declare any conflict of interest and must manage them effectively to meet requirements of the code of Ethics policy.
- The fact that a conflict of interest has been declared does not mean that it has been addressed.
- Significant personal interests and directorships must be declared, even though a conflict does not exist.
- Employees and director are required to complete and submit annual declaration forms electronically, even if they have no interest to declare.
- This form must be updated within five (5) days of any changes to the information that is supplied on this form.
- All employees and director are prohibited from having any direct or indirect personal or other beneficial interest in any contract with Azuresky, whether as a supplier, as an advisor, or by virtue of being a director or owner of the business, or in any other capacity. This includes third party related transactions with an indirect link to Azuresky contract (eg having a personal or beneficial interest or other interest in a business that has an interest in a supplier to Azuresky). Such interests are prohibited and cannot be regularised by managerial approval.
- Related parties of employees must not engage in, nor have Azuresky contract where there is a conflict of interest.

Azuresky (Pty) Ltd has been registered in terms of the Companies Act 71 of 2008 and was issued with a certificate of registration by the Companies and Intellectual Property Commission (CIPC)

A conflict of interest arise when one's personal, personal financial interests or any other interests affect, could affect or could be perceived to affect, or have the potential to affect, one's objectivity and discretion and/or the objectivity and discretion of another in performing Azuresky duties or making decisions on behalf of Azuresky, where personal interests refer to the direct or indirect interest of an employee or director or of a related person or inter-related person or other associates of the employee or director, in any

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	Approved by:	Nonhlanhla Msibi - Operations Manager	

business, entity, undertaking or investment as a shareholder, director, associate, member, adviser/consultant, prescribed officer or any other capacity.

I have read the introduction above Yes☐ No☑ [tick]

Question 1

Do you have directorship or shareholding that you hold as listed in the CIPC?

Yes☐ No☑ [tick]

If yes, please specify..Only with Azuresky Ltd Pty.....

How long have you had the title.....Since 2024.....

Question 2

Do any of the companies listed in question have any interests, including shareholding and directorships in Azuresky, Azursky suppliers or any other business that deals with Azuresky.

..... Yes☐ No☑ [tick]

Question 3

Do any of your close family members or other persons who are known to you (friends, business associates, etc) have any interest in Azuresky, Azuresky suppliers or any other business that deals with Azuresky or has a potential to create conflict of interest?

NB: Close family members include your spouse, domestic partner (if not married), your children, domestic partner's children and your dependants or dependants of your spouse or domestic partner, sibling, parent, grandparent or grandchild.

..... Yes☐ No☑ [tick]

Question 4

Effective date	Rev status	Next review date
04/2026	00	04/2029

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AzurESky "ensure quality of test"	CONFLICT OF INTEREST DECLARATION		
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	Approved by:	Nonhlanhla Msibi - Operations Manager	

Do you perform private work as defined in the Code of Ethics policy

Yes☐ No☑ [tick]

If yes, please specify.....

How long have you engaged in private work

.....

Question 5

Do you have other significant personal / financial or other interests, whether there is a conflict of interest or not, that should be declared in terms of the code of ethics Code of Ethics policy Yes☐ No☑ [tick]

If yes, please specify.....

Question 6

Political Exposed Person (PEP): A Political Exposed Person is an individual who holds or held a prominent or public function. Within this position, the person has a level of influence and control over public funds, benefits and decision-making. The abuse of such a position in office could result in corruption and bribery that may serve as a predicate offence to money laundering Yes☐ No☑ [tick]

Undertaking

a. I hereby declare that to the best of my knowledge, the information provided on this form is accurate and complete.
b. I undertake to disclose any new interests or changes to my current disclosed interests within 5 working days of such changes arising.
c. I undertake to take measures to effectively manage any conflict of interest I may have, as stipulated in the Code of Ethics policy
d. I furthermore give my consent for this information to be used strictly for the purpose as described in the Code of Ethics policy

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	Document no: ASMF4.2.1 D		
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	Approved by:	Nonhlanhla Msibi - Operations Manager	

e. I specifically consent that information information provided in terms of this declaration of interest form may be processed for verification and ancillary purposes by Azuresky. Such processing may include the sharing of information with third parties

Yes☑ No☐ [tick]

(a, b, c, d, e)

Declaration by Director:

Name: NP Msibi Date: 20.04.2026

Signature.....

Commissioner of Oaths:

Name: HALALETSANG MAOTSI Date: 2026-04-20

Signature.....

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COMMUNITY SERVICE CENTRE/C SHIFT
2026 -04- 20
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